AI HIRING · CASE 005

A court let Workday withhold its own AI bias-testing data from the people suing it

In May 2026, a federal judge ruled that Workday did not have to hand over its own bias-testing data to the people suing it. The court's reason: Workday's lawyers curated the data and used the results to give legal advice. The same order made Workday produce its EEO-1 and OFCCP records. The lawsuit's discrimination claims are untried.

WHAT HAPPENED

- The plaintiffs are suing Workday. The court describes their claim as an AI screening system that is more likely to reject applicants who are African American, have disabilities, or are over forty. The claims have not been tried.
- The plaintiffs asked the court to make Workday hand over its bias-testing data and its customers' applicant data. The court said no to both.
- The court's reason for the bias-testing data: attorney-client privilege applies, because Workday's lawyers curated the data and used the results to give legal advice. The order says Workday represented that its lawyers curated the data and that the testing's purpose was legal advice.
- On bias-testing data, the order says it addresses only the data Workday claims is privileged. On customers' data, the court said it could not order production on the record before it.
- The court did order Workday to produce its EEO-1 and OFCCP records, saying Workday uses the same AI tools as its customers.

Grade B Well supported

KEY NUMBERS

14,000+
people who had joined the case as opt-in plaintiffs by May 2026, by the plaintiffs' count (Workday says 15,000)

216,622
anonymized IDs of people who applied for jobs at Workday itself, in the data Workday produced, by the plaintiffs' count

3
external bias audits of Workday's tools that the plaintiffs list: 2023, 2024 and 2026

WHY IT MATTERS

A magistrate judge held Workday's own bias-testing data privileged, because Workday's lawyers curated it and used the results to give legal advice, and denied the plaintiffs' motion to make Workday produce it. The library's reading: for buyers and vendors of AI hiring tools, who commissions a bias test, and why, may decide who can later see its results.

STILL UNKNOWN

- Workday's own court filings on privilege were not read; what Workday argued is known only from the court's order and the plaintiffs' quotes.
- Which data the words "strategic curation", which the plaintiffs quote from Workday's brief, referred to. The plaintiffs apply the words to the applicant data; the documents we read do not settle it.
- On our reading, as of 2 October 2026, Workday's quarterly report does not name this lawsuit or mention the ruling.

Read the full record, with every source and its quotes: https://danielwipert.github.io/ai.case.study/cases/2026/aai-2026-005-mobley-workday-hiring-screening/

Everything above except "Why it matters" is the case's checked summary text; "Why it matters" is the library's reading, checked against the same record. Checked 3 oct 2026. Made 12 Oct 2026.